

Smt Malipeddi Uma vs Sri Malipeddi Srinivasa Rao on 24 October, 2025

APHC010374342025

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

FRIDAY, THE TWENTY FOURTH DAY OF OCTOBER
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 231/2025

Between:

1. SMT MALIPEDDI UMA, W/O. MALIPEDDI SRINIVASA RAO, D/O.
RUDRA KUMAR, AGED ABOUT 33 YEARS, OCC HOUSEHOLD
DUTIES R/O. D.NO 15 - 143, MUTHYALAMRNA TEMPLE,
JAGANNATHAPURAM, AGRICULTURAL RESEARCH STATION,
GAJULAREGA, VIZIANAGARAM - 535 00

...PETITIONER

AND

1. SRI MALIPEDDI SRINIVASA RAO, S/o. Mukunda Rao, Aged about 42
years, Occ Manager in Logistics at Mumbai, R/o. D.No 44 - 5 - 1 / 9,
SF - 304, Trishul Raja Vihar, Thatichetlapalem Visakhapatnam - 530 01

...RESPONDENT

Petition Under Section 24 of the C.P.C. Praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to withdraw the FCOP 1550 / 2024 on the file of Judge, Family Court cum V Additional District Judge at Visakhapatnam, and transfer the same to the file of the Judge, Family Court, at Vizianagaram and pass s

IA NO: 1 OF 2025

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to grant stay of all further proceedings including appearance of the Petitioner herein in FCOP No. 1550 / 2024 on the file of Judge, Family Court cum V Additional District Judge at Visakhapatnam pending disposal of the above Tr.C.M.P and pass such

Counsel for the Petitioner:

1. MSVS SUDHA RANI

Counsel for the Respondent:

1.

The Court made the following:

ORDER:

Today, when the matter has been taken up for hearing, learned counsel for the petitioner has submitted that, proof of service Memo has been filed before the Registry on 14.10.2025 vide U.S.R.No.117270 of 2025, along with the Postal Track Consignment Sheet downloaded from the Postal Department Website and the same is placed on the record. As per the Postal Track Consignment Sheet, the registered notice sent to the respondent and the same was served on him on 29.09.2025. Despite service of notice, there is no representation on behalf of respondent. Therefore, 'service held sufficient'.

2. The petitioner/wife herein filed the present petition under Section 24 of the Code of Civil Procedure, 1908, (for short 'the C.P.C.') seeking for withdrawal of F.C.O.P.No.1550 of 2024 on the file of the Judge, Family Court- cum-V Additional District Judge, at Visakhapatnam and transfer the same to the Judge, Family Court, Vizianagaram, for trial and disposal of the same.

3. The case of the petitioner in brief is as follows:

I. The petitioner is legally wedded wife of the respondent/husband and their marriage was performed on 27.01.2012, in the presence of both side elders and well wishers at Sri Kanyaka Parameshwari Ammavari Kalyana Mandapam, Kothagraharam, Vizianagaram, as per the Hindu Rites and Caste Customs. During their wedlock, the petitioner/wife and respondent/husband were blessed with two children aged about 12 & 5 years respectively and later, due to the matrimonial disputes between both the spouses; the petitioner/wife has been residing separately along with her children and depending upon the mercy of her parents at Vizianagaram. The petitioner/wife further pleaded that in view of the harassment made by the respondent/husband, she lodged a complaint against the respondent/husband and his family members on 26.08.2024, which was registered as F.I.R.No.76 of 2024, for the offence punishable under Section 85 of B.N.S. and under Sections 3 & 4 of the Dowry Prohibition Act, 1961, before the Disha Police Station, Vizianagaram, the same is pending for adjudication and she also filed a Maintenance Case vide F.C.M.C.No.26 of 2024 on the file of the Judge, Family Court, Vizianagaram, under Section 144 of B.N.S.S. Act, 2023, seeking maintenance and the same is pending for adjudication.

II. Learned counsel for the petitioner would further contend that with a view to cause inconvenience and to harass the petitioner/wife, the respondent/husband herein had filed F.C.O.P.No.1550 of 2024 on the file of the Judge, Family Court-cum-V Additional District Judge, at Visakhapatnam, under Section 9 of the Hindu Marriage Act, 1955, seeking restitution of conjugal rights and the same is also pending for adjudication. III. Learned counsel for the petitioner would further contend that the petitioner being a woman, has been residing separately along with her daughters aged about 12

& 5 years respectively and depending upon the mercy of her parents at Vizianagaram, it is very difficult for her to travel to attend the restitution case proceedings which was filed by the respondent/husband herein, before the Court at Visakhapatnam without any male assistance and that she was constrained to file the present petition against the respondent/husband, seeking for withdrawal of F.C.O.P.No.1550 of 2024 on the file of the Judge, Family Court-cum-V Additional District Judge, at Visakhapatnam and transfer the same to the Judge, Family Court, Vizianagaram, for trial and disposal of the same.

4. Heard Ms. M.S.V.S. Sudha Rani, learned counsel for the petitioner.

5. Though registered notice sent to the respondent and the same was served on him, none appeared for the respondent. Therefore, 'service held sufficient'.

6. Perused the material available on record.

7. The material on record prima facie goes to show that, in view of the matrimonial disputes, the petitioner/wife has been residing separately along with her children in her parents' house at Vizianagaram and she has instituted two (02) cases against the respondent/husband herein i.e., a Criminal Case which was registered as F.I.R.No.76 of 2024, for the offence punishable under Section 85 of B.N.S. and under Sections 3 & 4 of the Dowry Prohibition Act, 1961, before the Disha Police Station, Vizianagaram, the same is pending for investigation and Maintenance Case vide F.C.M.C.No.26 of 2024 on the file of the Judge, Family Court, Vizianagaram, under Section 144 of B.N.S.S. Act, 2023, seeking maintenance and the same is pending for adjudication and the respondent/husband is regularly attending the case proceedings before the competent Court at Vizianagaram. The material on record further discloses that the respondent/husband had filed a petition against the petitioner/wife herein vide F.C.O.P.No.1550 of 2024 on the file of the Judge, Family Court- cum-V Additional District Judge, at Visakhapatnam, under Section 9 of the Hindu Marriage Act, 1955, seeking restitution of conjugal rights and the same is also pending for adjudication.

8. The Apex Court in a case of N.C.V. Aishwarya Vs A.S.Saravana Karthik Sha1 held as follows:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

9. On considering the submissions made by the learned counsel for the petitioner and in view of the ratio laid down in the aforesaid case law that in matrimonial proceedings, the convenience of the

wife has to be taken into consideration than that of the inconvenience of the husband. Therefore, I am of the considered view that there are justifiable grounds to consider the request made by the petitioner/wife, seeking for withdrawal of F.C.O.P.No.1550 of 2024 on the file of the Judge, Family Court-cum-V Additional District Judge, at Visakhapatnam and transfer the same to the Judge, Family Court, Vizianagaram.

10. In the result, the present Transfer Civil Miscellaneous Petition is allowed and the F.C.O.P.No.1550 of 2024 on the file of the Judge, Family 2022 LiveLaw (SC) 627 Court-cum-V Additional District Judge at Visakhapatnam, is hereby withdrawn and transferred to the Judge, Family Court, Vizianagaram. The learned Judge, Family Court-cum-V Additional District Judge at Visakhapatnam, shall transmit the case record in F.C.O.P.No.1550 of 2024, to the Judge, Family Court, Vizianagaram, duly indexed as expeditiously as possible, preferably within a period of two (02) weeks from the date of receipt of a copy of this order. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim Order granted earlier, if any, shall stand closed.

24.10.2025 CVD JUSTICE V. GOPALA KRISHNA RAO Date: